

Court No. - 3

Case :- WRIT - C No. - 22151 of 2022

Petitioner :- Tulasi

Respondent :- The State Of U P And 4 Others

Counsel for Petitioner :- Rakesh Kumar Mishra

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard Sri Rakesh Kumar Mishra, learned counsel for the petitioner and learned Standing Counsel for the State-respondents and Sri Pranjal Mehrotra, learned counsel for the respondent nos. 4 and 5.

This writ petition has been filed praying for the following reliefs:

"i) Issue a Writ, order or direction in the nature of certiorari quashing the impugned recovery Citation dated 14.9.2021 issued by respondent no.3 (Annexure No.3) .

ii) Issue a writ, order or direction in the nature of mandamus Commanding the respondent authorities not to adopt any Coercive measure in pursuance to the impugned recovery Citation dated 14.9.21 (Annexure No.3) .

Sri Pranjal Mehrotra, learned counsel for the respondent No .5/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/her objection under ***Para 6.8 of U.P. Electricity Supply Code, 2005*** before the respondent No.5, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No5 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 4.8.2022

T.S.